

COVENANTS

The Indigenous Original Position
In
Relationship to the Land
©

Paper

for

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Aboriginal Treaty Rights**

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Introduction:

The word covenant in its most conventional sense means “a solemn and bilateral promise to do or not do something specified”¹. Wikipedia then goes on to describe the word covenant in theology, law and government, places and institutions, in literature, in film and television, in music and in video games. In the Oxford English² dictionary covenant is described as “a formal agreement, a contract. In Black’s Law Dictionary³ the first definition of a covenant is “[a] formal agreement or promise, usu[ally] in a contract”; then sixty more entries follow defining particular forms of covenants related to property and contractual obligations.

Historically, the word covenant pertained to a contract of sort between a people and the Creator over the dominion of Earth. Later came another covenant between those that understood ‘this relationship to the Earth’.

In 1689, one of the founding fathers of liberalism, John Locke described property as a relationship between a person’s toil with the Earth. Years later another scholar named John Rawls described what he termed the “original position”, a ‘form of innocence to return to in order to be able to think things through, basically with an uncluttered mind’, and whether it was a possible for mankind to ever return to this state.

Eventually these types of thinkers made contact with the Indigenous groups of North America (also known as Turtle Island) in the form of theorists, philosophers, discoverers and theologians. I suspect upon contact they realized that these people in this

¹ Wikipedia online: <http://en.wikipedia.org/>

² Helen Liebeck and Elaine Pollard, “Oxford English Mini Dictionary” 4th ed (Oxford: Clarendon Press, 1985)

³ Bryan A. Garner, “Black’s Law Dictionary” 7th ed. (St.Paul, Minn.: West Group Publishing Co. 1999)

new land were extraordinary, as they *lived* in “the original position”. The Indigenous people would of *unknowingly* held up the proverbial mirror and showed the newcomers their conscience. On reflection of this fact, the newcomers decided to make a covenant with them. The Indigenous people of Turtle Island welcomed their new relatives and wished to “kindle a flame of learning and knowing” with them⁴. And so a relationship began, *in peace and friendship*, with each party offering their best gifts to the other. However the relationship was far from being on an equal footing *literally*, because one group was much more solid on the Earth then the other. The group from across the ocean was so far from the Earth, and the *gift of life that flows from the Earth*, that they had left the Earth to be on the sea instead. They had been searching for that point of origin, on the deep ‘sea of unconsciousness’ out in the middle of the ocean.

Today, most people who enter into relationships with Indigenous people know that most Indigenous groups have a peculiar relationship to the land. In law, this is termed a *sui generis* relationship, a unique relationship; but is it really? Or was this a way of ensuring redemption in the future? This paper is going to explore “the original position” from the perspective of the *Indigenous relationship to the land* in the form of “covenant”.

Background

The Holy Bible, that was the ‘rule of law’ for many generations of people in the *holy land*, contained a series of covenants that were made throughout time between God and the people. There is the “ark of the covenant” that holds the ten commandments, the

⁴ Treaty of Lancaster, 1744, Early American Indian Documents, Vol.II 77

first recorded laws for the people. Where did the commandments come from? They came from God upon a mountain that compelled Moses to seek out and climb, and a bush that illuminated his way. The people were okay with these commandments for awhile and then disorder and disharmony resulted, as there were always those that wanted to *possess* the sacred, but never wanted to sacrifice their own toil to embrace it. Divisions resulted and so those of the true faith go off with Noah on an ark⁵ as God makes things anew.

A century or so later, the people are toiling along satisfied with the light and bounty of their lives; and once more, disorder slinks in through those that want *to possess* the light. So ‘the darkness’ dangles the shiny baubles⁶ and many get led astray again. Then Christ comes along and he makes a new covenant with the House of Israel and the House of Judah:

Behold the days come saith the Lord, when I will make a new covenant with the House of Israel and with the House of Judah:

Not according to the covenant that I made with their fathers in the day when I took them by the hand to lead them out of the land of Egypt; because they continued not in my covenant , and I regarded them not, saith the Lord.

For this *is* the covenant that I will make with the House of Israel after those days, saith the Lord; I will *put my laws into their mind, and write them in their hearts:* and I will be to them a God, and they shall be to me a people:

And they shall *not* teach every man his neighbour, and every man his brother, saying, Know the Lord: *for all shall know me from the least to the greatest.*

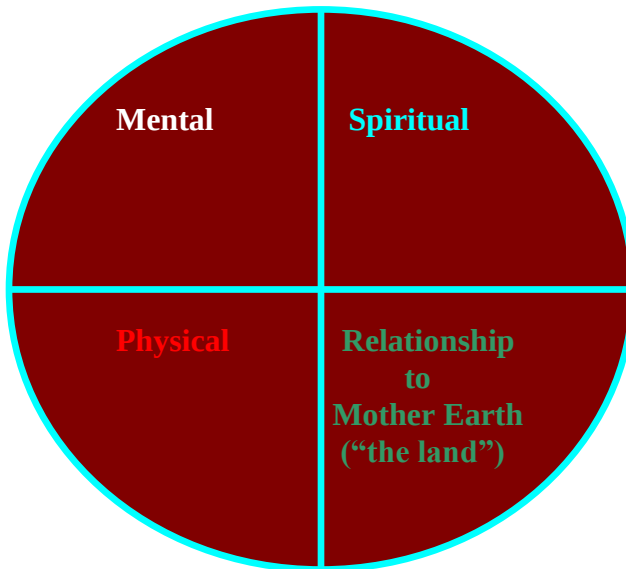
For I will be merciful to their unrighteousness and their sins and their iniquities will I remember no more.

⁵ See Frank Waters, “The Book of the Hopi” (New York: Penguin Books, 1977) The Hopi saw the time of the great flood as the end of the 3rd world. The world that we were so technologically advanced in that we each had our own shuttles to fly around in but we forgot how to stay in relationship to the Earth through ceremony, Kachina Dances for the Hopi. The Hopi have a history of 3 previous worlds. See also the James Bay Cree documentary “Power” where Matthew Coon Come speaks about traveling over water with his people to New York to save their land and way of life, was like being Noah.

⁶ Baubles never shine without light.

In that he saith, A new *covenant*, he hath made the first old. Now that which decayeth and waxeth old is ready to vanish away.⁷

Indigenous Relationship to the Land



Original Living Wheel of First Nations People⁸

There's a way to live with the Earth, and a way not to live with the Earth; We choose the way of Earth.

John Trudell – Sisseton Dakota Sioux⁹

These words may sound simplistic but they are loaded with a complete world view that is pertinent to most Indigenous groups around the world. This is the great law, the great peace as the Haudenosaunee recorded in their two row wampum belt that became the Covenant Chain¹⁰ in 1692. “You in your boat and me in my canoe”¹¹, we travel parallel paths. We can join these paths

⁷ King James Version, “The Holy Bible”, Hebrews 8:8-13 (Collins’ Clear Type Press: Great Britain, 1958)

⁸ This wheel was trashed by another institution that removed our relationship to the Earth and put in emotional. This has hurt and continues to hurt Indigenous and non Indigenous people. Indigenous people had no concept of emotion; however, they did understand when their breathing was out of balance and hence; their life was out of balance. Oral history: Pompana Tiyoipaye. [Pompana]

⁹ John Trudell, “Thunderheart” (1992) online: <http://www.johntrudell.com/bio.html> [Trudell]

¹⁰ Iroquois Democracy online: <http://www.iroquoisdemocracy.pdx.edu/html>

¹¹ Oren Lyons, Faithkeeper Haudenosaunee, “The Native Americans”, (Warner Turner Broadcasting, 1994)

when we *brighten the relationship between us*¹² through mutual understanding, respect, honour, justice. When those ideals are misplaced we cannot brighten our converse. As often said in law of contracts, the agreement is only as good as those who undertake it. The covenant cannot be engaging for both parties if it does not *brighten* the mutual understanding between them.

How can such covenants happen if both parties are not regularly communing on the mountain with the Creator?

Indigenous people did not have *exactly* the same experience as those on the other side of the world with Moses, Noah and Jesus; however, there were holy people throughout the nations. For the Sioux Nation, and the Lakota in particular, they are called “wicasa wakan or winyan wakan¹³”. Many nations still practice ceremonies that put them in touch with a power greater than themselves; and many nations still have holy people¹⁴ that have carried the knowledge down through the generations through trial and tribulation. As well, there are still many who try to possess this knowledge or put on the guise of being wisdom keepers; however, like those Israelites the knowledge is within the blood memory. That knowledge may awaken in life or remain dormant for a generation. It may come alive through cultural practices; but it is never for sale, or to be solicited.

¹² Treaty of Lancaster, 1744, Early American Indian Documents, Vol.II 77

¹³ See PomPana note 8.

¹⁴ Sitting Bull, Crazy Horse, Black Elk, Gall, Geronimo, Thomas Banyaca, Seattle, Joseph, Poundmaker, Crowfoot, Little Pine, Red Pheasant, Short Bull, Starblanket, American Horse, Pete Catches, Archie Fire, Lone Deer, Henry Crow Dog, BIG FOOT, to name a few. Even some of our young actors have become famous because they have such strong ethics. Like Rodney Grant, Lakota, who would not play Crazy Horse in a film because he didn't look anything like Crazy Horse. It was so wrong to depict someone as they were not for the sake of Hollywood. Crazy Horse as the family knew of him had light brown hair, hazel eyes and was about 5' 8" tall. There are a number of scholarly works on comparing Crazy Horse to Christ. As Lakota people, (and particularly Charlotte Black Elk quoted), we said about Christ “ now there is a good Lakota man, he sacrificed himself for the people ”...like Lakota men do in the sundance ceremony.

*There is a way to live with the Earth, and a way not to live with the Earth*¹⁵. In the last 100 years this has become a very tricky process, even for those that had been steeped in cultural practices, as the confusion and chaos is everywhere. However; nevertheless, there are those that continue to endure no matter what¹⁶. Possibly this is due to their genes, their blood memory, their relatives and/or simply the sequence of events in their lives. No one knows, and it is not to try and figure this out, as the sacred is not for sale. Often we hear the old people say you can have everything I have; you just have to live as I have lived.

Hehaka Sapa, Black Elk, a ‘wicasa wakan’, saw the ‘tree of life’ die and come to life again through seven ascents (generations) when he was *nine years* old. Wovoka, a Paiute, saw Christ appear as a red man and teach the people how to dance. The Paiute were the first to learn this dance, and then within five years all the plains people in North America were ghost dancing¹⁷. The ghost dance prophecy was that if the people kept dancing till spring, the wasichus¹⁸ would be gone and the buffalo would return. In Lakota prophecy, a day is a year. In 1990, the springtime came and the people were still dancing. Many don’t know that they are in fact ghost dancing as the tea dances and round dances are an offshoot of the ghost dance. The tree of life is our sun dance tree that is flowering

¹⁵ See Trudell *supra* note 9.

¹⁶ It is important to qualify this remark with the adage that these people are also *very human* and suffer many trials and tribulations.

¹⁷ One needs to recall this is the 1800’s and there are no telephones, this is occurring by *moccasin telegraph*.

¹⁸ Wasichu translates to those that take the fat of the land. It does not translate to white as defined in Hollywood. In other words it could be any of the 4 races of mankind; red black yellow or white, and refers to the greedy people. See Pompana *supra* note 8.

again for all races and nations. The book *Black Elk Speaks*¹⁹ is translated in numerous languages, and people practice these spiritual ways all over the world.

Then I was standing on the highest mountain of them all, and round about beneath me was the whole hoop of the world. And while I stood there I saw more than I can tell and I understood more than I saw; for I was seeing things in a sacred manner the shapes of all things in spirit, and the shape of all shapes as they must live together like one being. And I saw that the sacred hoop of my people was one of the many hoops that made one circle, wide as daylight and as starlight, and in the center grew one mighty flowering tree to shelter all the children of one mother and one father. And I saw that it was holy.²⁰

Covenant

The covenant that Indian people have with the earth, and all their relations is revealed in the cultural practices of every day life. Knowledge is not shared if a person is out of balance because they may twist that knowledge, become fanatical, try to sell it or misuse it in some other way. Our Sioux people, (known to each other as the ‘buffalo people’ or the ‘pte oyate’ or *tatanka oyate* in the Lakota language), are compelled to share this renewing process with our relatives as this was the task (the covenant) that was given to us by the holy woman Pte San Winyan, White Buffalo Calf Woman or White Bison Spirit Woman. However, there has been much confusion with these teaching as many people did not have the cultural framework to receive this understanding.

There are as many covenants between the Earth and Indigenous groups as there are Indigenous groups in the world. These covenants are in practice today with greater and lesser degrees of understanding and relevance depending on how the Indigenous group weathered the last 100 years.

¹⁹ John Neihardt, “*Black Elk Speaks*” (Nebraska: University of Nebraska Press 2000)

²⁰ Ibid at Pg 33.

For the Lakota groups there was a pipe and seven ceremonies passed to the buffalo people from an animation of the buffalo spirit in the form of a woman. These practices came about in a certain way through fasting, praying and visioning with a pipe that is still in existence today²¹. If people maligned this understanding they suffered, because *there is a way to live with the Earth and a way not to live with the Earth*²². In 1939, a catholic priest came to Sioux Valley²³ as a sundance was being reintroduced there from South Dakota. He chopped down the sundance tree. He then went crazy and was institutionalized for the rest of his life. Shortly thereafter, Black Elk put his hands on a young Sioux boy's head before he passed on. The child was nine years old in 1949, and the reason he did this was to pass on to this boy whatever knowledge he had left in him as a holy man²⁴. A few years later the child went vision seeking and the eagle came. Just before this boy entered the military, his Mother (a descendant and holder of Sitting Bull's bundle) took the boy to be ordained in the Native American Church²⁵. Then the boy entered the military. While he was involved with the services all over the world he conducted sweat lodges in Ireland to assist revitalization of Gaelic people there, he went to medicine lodges of the Zulu, and wherever he was with the military, he was also involved with the holy people. This was in the early sixties. He was not immune to what was around him; he witnessed the horrors of war, and was near death many times. One

²¹ Arvol Looking Horse is the 19th generation keeper of the sacred pipe today.

²² See Trudell *supra* note 9.

²³ Sioux Valley was known as the Oak Lake Indian reserve at that time. A Dakota Sioux reserve that kept the Sioux cultural practices when they were outlawed.

²⁴ Later Clifford Pompana said that he was really scared because Black Elks scrawny old hand felt like a claw on his head.

²⁵ This was the original church where it was not a focus on peyote. That was used *rarely*. Stephen Spider was the one who ordained him then though he forgot all about this till recently. Residential schools and the military tend to do this. He is ordained to day though it was through scholarly pursuits.

time he was sinking in water and nearly drowned, when he was surrounded by blue light and lifted out of the water. The people at home say they held a ceremony for him at that time though this knowledge was not revealed to him till many years later. Another time, when he was 'on leave', he was told to go to Morley²⁶ as some people wanted to see him. He got off the bus and the old people put him on a hill. He was told to pray for his relatives. He went up for the 4 days on the mountain. He heard loud crashes like the sound of metal on rock. He prayed. They came to get him after the last day, and put him through a sweat. The next day he went back to active duty. He excelled in everything in the military. He was moved from one unit to another for his skills and intelligence. He recorded over 1100 jumps, taught military law, trained with 'special forces,' and he suffered horribly. He finally got out a decade later. He upgraded his academic skills and found a career in Edmonton. He got involved in a relationship with a woman from a different nation who had lost their culture. Her family did not have the understanding 'of relationship', and therefore did not take relationships in general very seriously. Now a father with 2 children, he realized that he could not stay in that kind of relationship any longer. He had a trade as an electrician and worked for many years in the tech field, but he was gradually becoming more deaf. Meanwhile his children were returned to him because the mother could not look after them. He had a dream of the eagle grabbing his chest, and the next day his relative called to let him know the sundance was happening in a few days at Sioux Valley.

He was also involved with a 12 step group in Edmonton, where the old Indian guys gave him a lot of direction with regard to getting an education and so forth. Most of them were veterans as well. One of them was Charlie Gibson from Rosebud, South

²⁶ Morley, Alberta where the Nakoda or Assiniboiné or Stoney people are, the northern Sioux.

Dakota, and the other was Laurence Flewelling Grumbly (Lethbridge) from Wood Mountain, Saskatchewan. They would tell him things like he was not like these people around here, he was Sioux.

He knew he would have to do something due to his deafness so he began studying at Grant MacEwan Community College to get his university entrance. He also began conducting ceremony again. He finished his undergraduate degree and met his current wife Joanne. She was the daughter of Laurence Grumbly (Lethbridge). Laurence had passed on in 1988, but he had told Cliff many times that you have to meet my daughter²⁷. He never did meet her when Laurence was alive. Joanne and Cliff were married in 1992. Cliff went on to get his Master's degree; and is completing his doctorate in a field that he created. It is a combination of comparative religion, psychology and anthropology. He is also an ordained minister. Cliff has worked with many people in Alberta with respect to healing, and two of his male relatives continue to work with many people in British Columbia and Manitoba.

In 1993, Calvin PomPana his younger brother/cousin came through Edmonton and visited on his way to Merrit, B.C., where he and Alden PomPana were setting up a sundance. Cliff and Calvin got to talking about the years past, and they came to discuss an incident that had occurred 25 years earlier. Calvin was telling him about when he was in this really bad car accident. They had started partying on a Friday night and lost control of the vehicle. He nearly died. He was hospitalized for many months. He remembered his Mother coming into the hospital and telling him "don't worry my son, your relative is praying for you." Cliff asked him for the exact date of this accident and it

²⁷ She had lived in a tipi for a winter in 1975, studied herbs, physics and astronomy, traveled amongst Indigenous groups around the world in the early seventies; and been through some bad relationships.

turned out this was the weekend that he had been summoned to Morley to go up on the hill. The metal on rock sound that he heard was this car crash in Manitoba. All 3 men, Cliff, Calvin and Alden, learned at a very young age that when the old people²⁸ asked you to do something, you never questioned it, you just did it. This is customary law.

Original Position

Most traditional people never spoke about ceremony bringing you back to the “original position” but they did know when your mind was unsettled. If your thoughts were unsettled then so was your life; and therefore you were out of balance with all your relatives on Earth. And; there are ways through *traditional* ceremony to bring you back into balance;²⁹ so you once again remember, restore and renew your sacred relations in life³⁰. Key to living in a good way with the Earth is humility, an ethic that is tied to fortitude, bravery and generosity. Another person can speak about your deeds, but not you which made life very difficult for a number of years³¹ for our really talented people. Some just stop practicing ceremony because they were so affronted by the delusional

²⁸ That remark needs to be qualified today because these were healthy old people. These boys knew the difference back then between the unhealthy and healthy old people because their parents were healthy traditional people and when they were growing up in Sioux Valley, there were still a lot of the healthy ones around as well as other relatives that would come up for ceremony from the States like Frank Fools Crow, Henry Crow Dog, Pete Catches and Stanley Looking Horse.

²⁹ This passage needs to be qualified as there are a number of people who buy pipes and practice Ritual and call themselves all kinds of things but they do not have the capacity to conduct the Energy for healing a person might feel mystified and a state of euphoria for a while but it will not last. Unfortunately the people that get caught up in this process suffer horribly and they will not stop some of them. You should not have to keep going to ceremony every week for month after month, year after year. This can be like those that go to church *every* Sunday and the rest of the week they are sinning away...*there is a way to live with the Earth and a way not to live with the Earth*...once you have sorted things out yes you can assist others or go in some *other* direction that has illumined before you. It is really about how you conduct your life.

³⁰ When Cliff first was out of the military he went through sweats with Frank Fools Crow in South Dakota to take that blood off him.

³¹ There are still those mixed up people in practice today.

thinking and the fanatical practices that were going on.. There were are these “eagle flying on the wind” and “walking through the grass buffalo” types³² going on about how great they are as “medicine people” though their teachings often come from borrowed tradition, ceremony and culture. Our old traditional Sioux’s just shake their heads. No one ever says anything to these people unless they know the person has been deliberately tricked. In reality, this is just one more aspect of generational trauma in reality that fragments the people further. However, it was so bad at one point that the romantic charlatans of ceremony would be listened to more then those that had dedicated their whole lives to protecting and practicing the sacred.

However, there is also the traditional assurance “that each person’s journey is between that person and the Creator,” and you do not interfere with that person regardless of what they do. At the same time, we remind one another that, *there is a way to live with the Earth and a way not to live with the Earth.*³³ In other words, there are things *you just do not do*, no matter what. The result when you go against this basic law is that “you may set things in motion in your life that you may not be able to reverse later on.”³⁴

Conclusion

Covenants and sacred relationships in life have been going on since the beginning of time. For many Indigenous people this relationship with the Earth is just a “way of life”. However, it was also a way of life for people across the ocean at one time too. If we look

³² Our spiritual names given to us through ceremony are between us and the Creator. We only speak them in our language and we do not translate. Some of us have actual family names of Eagle and Buffalo, that is different; and they are usually simple. Ceremonial names are usually simple as well, rarely a phrase of words unless it is two names tied together but again there is a pause between to simple names.

³³ See Trudell *supra* note 9.

³⁴ See Pompana *supra* note 8.

to the writings of Vittario³⁵ and others, the rule of God and the rule of law were tied together. Further back in oral history there are stories about the ‘people of the circle’ and the ‘people of the pyramid’ in central America; and how there was a struggle between these two groups because the ‘people of the pyramid’ tended to fix people in one position throughout life. This entombed the thunderbird nest to the ‘people of the circle’. So the people divided, and those of the circle fled north along the eastern seaboard of the United States.

Therefore this process of the hierarchical lifestyle in conflict with those that promote egalitarian life ways has been in existence for a very long time. In our more recent history, the Israelites were not that much different then the people in the plains, except for the fact, that the people in the plains never collectively committed suicide after ‘wounded knee’³⁶. The idea of spiritual law and covenants is nothing new. It is in many of our United Nation documents today and it is in the *Preamble* of the *Charter*,³⁷ therefore the only place it is truly missing is in the mainstream practice of law.

On the other hand, Aboriginal law has renewed the ‘spirit of the law’ in relationship to the Earth and Indigenous people, through a number of landmark decisions beginning with *Calder*³⁸ and³⁹ most recently in the *Tsilhqot’in*⁴⁰ decision of 2007. There

³⁵ Vittario, Lawyer Priest of the 16th Century

³⁶ December 30, 1890, over 300 Lakota men women and children had been murdered in the badlands of South Dakota for ghost dancing.

³⁷ *Constitution Act, 1867* (U.K.), 30 & 31 Vict., c.3, *Canada Act 1982* (U.K.), 1982, c. 11, *Canadian Charter of Rights and Freedoms*, Part I of the *Constitution Act, 1982*, being Schedule B to the *Canada Act 1982* (U.K.), 1982, c. 11.

³⁸ *Calder v. A.G. British Columbia* [1973] S.C.R. 313, 34 D.L.R.(3d) 145

³⁹ See also *R v. Badger* [1996] 1 S.C.R. 771, 133 D.L.R. (4th); *Campbell v. B.C. (A.G.)* (2000), 79 B.C.L.R. (3d) 122, [2000] 4 C.N.L.R. 1; *Delgamuukw v. British Columbia* [1997] 3 S.C.R. 1010, 153 D.L.R. (4th) 193; *Mikisew Cree First Nation v. Canada (Minister of Canadian Heritage)* [2005] 3 S.C.R. 388, 259 D.L.R. (4th) 610; *R v. Sparrow* [1990] S.C.R. 1075, 3 C.N.L.R.; *Taku River Tlingit First Nation v. British Columbia (Project Assessment Director)* [2004] S.C.J. No. 69, 245 D.L.R. (4th) 193; *R v. Van der Peet* [1996] 2 S.C.R. 507,

is a way to live with the Earth and not to live with the Earth⁴¹ and it is most reflected in these later decisions that pay attention to that *sacred covenant* that the Indigenous people have with the Earth. That is ‘respecting the Earth’ returns us all to our “original position”, beyond our blood parents, to our universal parents *Father Sky and Mother Earth*, so we remember, restore and renew those sacred relations in life and know we are never truly alone.

In closing, I wish to share two passages from Indigenous groups, the first from the *Tsilhqot’in*⁴² decision last year that follows the *Haida*⁴³ case a couple of years previous.

...[t]he way we see aboriginal rights is we need...the right to plan our area. The right to survive. Like, the thing I use is forever. We’re always going to be there. All the things that happen in our area, we had to take all that into consideration, what we need. We, ourselves, have to put a plan in place. We always think about that, on how we are going to survive here for a long time. Sustainability again is always the issue.

...[W]e need to plan our whole area. And then after we got all the information we need, then we look at economics, putting areas that we’re going to do certain things, from traditional stuff to a new economy. Like creating employment for our people...[A]s a *Tsilhqot’in* person, I need that right to protect my future.⁴⁴

and the other, is a prayer verse of the pueblo people called *Sia Medicine Song*⁴⁵

137 D.L.R. (4th) 289 and B.C. Treaty process, online: BC Treaty Commission www.bctreaty.net ; Comprehensive Claims (Modern Treaties) in Canada www.ainc-inac.gc.ca; James Bay Cree First Nation, Quebec, Canada; *Nisga’a Final Agreement Act*, S.B.C. 1999, c.2

⁴⁰ *Tsilhqot’in Nation v. Canada (Attorney General)* 2007 B.C.S.C 1700, [2008] 1 C.N.L.R. 112

⁴¹ See Trudell *supra* note 9.

⁴² *Ibid*

⁴³ *Haida Nation v. British Columbia (Minister of Forests)*, [2004] 3 S.C.R. 511, 245 D.L.R. (4th) 33, 36 B.C.L.R. (4th) 282, 2004 SCC 73 “our sisters the cedars”

⁴⁴ Heather Mahony, “*Tsilhqot’in Nation v. British Columbia: Cultural Security and the Promise of Site Specific Rights*” (2008) online: Woodward & Company <http://www.woodwardandcompany.com/>

⁴⁵ *Sia Medicine Song*, I have had this prayer for years and I am not sure if it Hopi. I will check to see if it is on the internet.

Sia Medicine Song

Grant our children life and happiness
Send forth the good south winds
Send forth your breath over the water
that our world may be beautiful
and our people may thrive
Far off, over there, Sun Father awakens
and climbs up his ladder
leaving his resting place.
May all complete life's long road,
may all grow old.
May the little ones know the sweet
smell of the scared breath of life.
May our children have maize
that they may complete their journey.
Sit down, remain here, we give our *best gift*
our *best thoughts*
We inhale the sweet smell of the scared breath
Through our prayer plumes.

The relationship with the “original position”, the Earth for Indigenous people, is the first and foremost covenant in life.